

most conscientious school decisionmaker from exercising his judgment independently, forcefully, and in a manner best serving the long-term interest of the school and the students. The most capable candidates for school board positions might be deterred from seeking office if heavy burdens upon their private resources from monetary liability were a likely prospect during their tenure.¹¹

These considerations have undoubtedly played a prime role in the development by state courts of a qualified immunity protecting school officials from liability for damages in lawsuits claiming improper suspensions or expulsions.¹² But at the same time, the judgment implicit in this common-law development is that absolute immunity would not be justified since it would not sufficiently increase the ability of school officials to exercise their discretion in a forthright manner to warrant the absence of a remedy for students subjected to intentional or otherwise inexcusable deprivations.

Tenney v. Brandhove, *Pierson v. Ray*, and *Scheuer v. Rhodes* drew upon a very similar background and were

¹¹ The overwhelming majority of school board members are elected to office. See A. White, *Local School Boards: Organization and Practices* 8 (U. S. Office of Education, OE-23023, Bulletin No. 8, 1962); National School Boards Association, *Survey of Public Education in the Member Cities of the Council of Big City Boards of Education* 3 (Nov. 1968); Campbell, Cunningham, & McPhee, *supra*, n. 10, at 164-170. Most of the school board members across the country receive little or no monetary compensation for their service. White, *supra*, at 67-79; National School Boards Association, *supra*, at 3, 15-21; Campbell, Cunningham, & McPhee, *supra*, at 172.

¹² "[School directors] are authorized, and it is their duty to adopt reasonable rules for the government and management of the school, and it would deter responsible and suitable men from accepting the position, if held liable for damages to a pupil expelled under a rule adopted by them, under the impression that the welfare of the school demanded it, if the courts should deem it improper." *Dritt v. Snodgrass*, 66 Mo., at 293.